

Ganpati Infrastructure Development Company Limited v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 12 May 2022 · Writ - C No. 3235 of 2019 · **Writ petition dismissed as withdrawn; Clause 4.9 vires not decided**

HEADNOTE

A developer's writ, objected to as covering the same ground as its pending Writ Petition No. 40192 of 2018 challenging the 13th Amendment to the U.P. Electricity Supply Code, 2005 and seeking a declaration that Clause 4.9 Part A and Part-B are ultra vires, was connected with that petition and later listed with leading Writ-C No. 4545 of 2019. Maintainability of the second writ was not decided. On Civil Misc. Withdrawal Application No. 2 of 2022 the petition was dismissed as withdrawn. Clause 4.9 and the amendment were not construed.

FACTUAL SUMMARY

Ganpati Infrastructure Development Company Limited filed Writ-C No. 3235 of 2019 against the State of U.P. and four others. On 29 January 2019 counsel for a respondent objected that the same petitioner had already filed Writ Petition No. 40192 of 2018, still pending, challenging the 13th Amendment to the U.P. Electricity Supply Code, 2005 and seeking to declare Clause 4.9 Part A and Part-B ultra vires, and that a second writ seeking more or less the same relief was not maintainable. The affidavit was of Ranjan Srivastava, the same deponent as in the earlier writ. Petitioner's counsel sought time to verify.

The petition was later connected with Writ Petition No. 40192 of 2018, with leave to file a counter, and then listed with leading Writ-C No. 4545 of 2019, whose order of date was to be seen. On 12 May 2022 Rajesh Bindal, C.J. and J.J. Munir, J. allowed Civil Misc. Withdrawal Application No. 2 of 2022 and dismissed the petition as withdrawn.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

vires challenge to Clause 4.9 / 13th Amendment connected with pending similar writs and later withdrawn

QUESTION

Is Clause 4.9 Part A and Part-B of the U.P. Electricity Supply Code, 2005, as substituted by the 13th Amendment, ultra vires, and is a second writ on that point maintainable while the petitioner's earlier writ remains pending?

HOLDING

Not decided. Counsel for a respondent objected that the petitioner's Writ Petition No. 40192 of 2018, challenging the 13th Amendment and seeking to declare Clause 4.9 Part A and Part-B ultra vires, was still pending, and that a second writ seeking more or less the same relief was not maintainable. The Court listed the matter, later connected it with that petition, and then listed it with leading Writ-C No. 4545 of 2019, whose order of date was to be seen. On Withdrawal Application No. 2 of 2022 the petition was dismissed as withdrawn. Neither maintainability nor the vires of Clause 4.9 was decided.

¶ order of 29.1.2019, order of 7.3.2019, order of 1.4.2019, order of 11.4.2019, order of 12.5.2022

QUALIFIER

Thin procedural disposal. The 1.4.2019 and 11.4.2019 sheets incorporate the order of date in Writ-C No. 4545 of 2019 by reference without reciting it.

FLAG Source PDF concatenates unnumbered listing sheets and a numbered withdrawal: 29.1.2019 (preliminary objection; B. Amit Sthalekar, J. and Manju Rani Chauhan, J.), 31.1.2019 (Vikram Nath, J. and Virendra Kumar Srivastava, J.), 5.2.2019 (Govind Mathur, C.J. and Chandra Dhari Singh, J.), 8.2.2019, 15.2.2019 and 7.3.2019 (connect with WP 40192 of 2018; Pradeep Kumar Singh Baghel, J. and Pankaj Bhatia, J.), 1.4.2019 (see order of date in Writ-C 4545 of 2019; same bench), 11.4.2019 (see order of date in leading Writ-C 4545 of 2019; Shashi Kant Gupta, J. and

PRINCIPLE TAGS

amended-clause-4.9-multi-point-release-mandate-2018 The petitioner's earlier pending writ was described as challenging the 13th Amendment and seeking to declare Clause 4.9 Part A and Part-B ultra vires; this later writ, treated as covering more or less the same relief, was connected with that petition and with leading Writ-C No. 4545 of 2019, then dismissed as withdrawn without deciding the amendment. ¶ [order of 29.1.2019](#), [order of 7.3.2019](#), [order of 12.5.2022](#)

clause-4.9-single-point-to-multipoint Clause 4.9 Part A and Part-B, as amended, was the provision whose vires was said to be in issue in the pending earlier writ and, by the respondent's objection, in this petition; the conversion mandate was not adjudicated. ¶ [order of 29.1.2019](#), [order of 12.5.2022](#)

procedural-listing-no-construction After listings, connection with WP 40192 of 2018, and listing with leading Writ-C No. 4545 of 2019, the petition was dismissed as withdrawn on 12.5.2022; Clause 4.9 was not construed. ¶ [order of 7.3.2019](#), [order of 11.4.2019](#), [order of 12.5.2022](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 PART A AND PART-B OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AS SUBSTITUTED BY THE 13TH AMENDMENT, IS ULTRA VIRES

Raised as the subject of pending Writ Petition No. 40192 of 2018 and, by the respondent's objection, of this writ; the petition was dismissed as withdrawn. ¶ [order of 29.1.2019](#), [order of 12.5.2022](#)

NOT DECIDED — WHETHER A SECOND WRIT SEEKING MORE OR LESS THE SAME RELIEF AS PENDING WRIT PETITION NO. 40192 OF 2018 WAS MAINTAINABLE

Raised as a preliminary objection on 29.1.2019; petitioner's counsel sought time to verify; the Court listed, later connected the petitions, and never ruled on maintainability. ¶ [order of 29.1.2019](#), [order of 7.3.2019](#)

NOT DECIDED — CONTENT AND EFFECT, IN THIS PETITION, OF THE ORDER OF DATE IN LEADING WRIT-C NO. 4545 OF 2019

The 1.4.2019 and 11.4.2019 sheets say only to see that order; they do not recite its directions. This record is not authority for whatever that leading order decided. ¶ [order of 1.4.2019](#), [order of 11.4.2019](#)